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Surveillance Systems

HC Deb 03 November 1998 vol 318 c495W

Mr. Baker To ask the Secretary of State for the Home Department (1) what controls exist to regulate in respect of computer-controlled surveillance systems capable of identifying faces(a) those persons programmed to be identified and (b) the use made of the information gleaned; [57716]

(2) what assessment he has made of the civil liberties implications of (a) the use of and (b) the safeguards applicable to the operation of the computer-controlled surveillance system in Newham. [57715]

Mr. Straw The Data Protection Act 1984 regulates the use of automatically processed information relating to individuals. With limited exceptions, holders of such information must register with the Data Protection Registrar and comply with the Act's legally enforceable data protection principles. Among other things, these require personal data to be obtained and processed fairly and lawfully, held only for specified and lawful purposes and not used or disclosed incompatibly with these purposes. I understand that the Data Protection Registrar will be meeting the Metropolitan Police and the London Borough of Newham in the near future to ensure that the necessary safeguards are in place to ensure compliance with the principles.

Any closed circuit television (CCTV) systems recording images of individuals which do not come within the ambit of the 1984 Act are expected to be covered by the Data Protection Act 1998. This gives wider enforcement powers to the Registrar, who will be re-titled Data Protection Commissioner. They include a new power to issue codes of practice as to good practice. Although these would not have direct statutory force, they would amplify how the enforceable data protection principles should be applied to the data use concerned. I understand that the Registrar has begun preparatory work on the preparation of a code of practice for CCTV.